

CHAPTER VIII.

The Replication.

Replication.

After the filing of the answer, the next proceeding is to file the Replication, which must be done by the Plaintiff within the time limited by the following Orders, or to set down the cause to be heard upon Bill and answer.

Setting down
cause on Bill
and answer.

The effect of setting down the cause on Bill and answer is that the truth of the answer is admitted, and the Plaintiff must rely upon what he finds in the answer, and on nothing more, as his evidence, to support his claim to a decree. He cannot go out of the answer to prove his case, (*Jones vs. Griffith*, 8 Jurist, 733). Under the old practice, when the Defendant was compelled to make full discovery of all the facts, in answer to the specific Interrogatories of the Bill, he frequently could not avoid making such admissions as were sufficient to sustain the Plaintiff's case, notwithstanding anything else in the answer contained. In such cases the Plaintiff might at once, without replying to the answer, set down the cause.

Not likely to
be now usual.

If he replied, the Defendant was then, as now, at liberty to go into evidence ; but the Plaintiff might and still may read from the answer, as true, to support his cases any passages he may think proper as evidence. Under the present practice the Defendant, not being compelled to make full discovery, is unlikely to state such a case on his answer as will alone sustain the Plaintiff's case, and therefore causes will very seldom be set down to be heard on Bill and answer.

The
filed.

No
only on
Court
the form
ed, or a
and up
deemed

The
Be

The
dant C.
against
hear th
dant E.
is to be
take th
(as the

The s
the 157
short for
Defenda
Order, i
fendants
clause w
the circ
pealed, a
mence a
1850.

There
and, a re
another
the Cou
(*Stinton*
The P
his bill)
cause to
after the
obtained